

Tentative Rulings for August 27, 2026 Department MV1

**To request oral argument, you must notify Judicial Secretary
Colleen Potts at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department MV1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 684 8816**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVMV2500434	CONSUMER PORTFOLIO SERVICES, INC., A CALIFORNIA CORPORATION VS WILLIAMS	DEFENDANT'S MOTION TO DISMISS WITH PREJUDICE FOR FAILURE TO PROSECUTE TO PLAINTIFF AND ITS ATTORNEY OF RECORD

Tentative Ruling: Denied.

Defendant has no standing to bring any motion other than a motion to set aside default.

2.

CASE #	CASE NAME	HEARING NAME
CVMV2603011	BANK OF AMERICA, N.A. VS DARAPHETH	MOTION TO VACATE BY PHOKHAM DARAPHETH

Tentative Ruling: Denied.

Defendant's declaration fails to establish that the default and/or default judgment were taken as a result of his surprise, mistake or excusable neglect. Defendant's failure to ensure his familiarity with legal proceedings is, at best, inexcusable neglect.

3.

CASE #	CASE NAME	HEARING NAME
CVMV2607321	HUNTINGTON DEBT HOLDINGS, LLC VS JOHNSON	SPECIAL APPEARANCE- NOTICE OF MOTION AND MOTION TO QUASH SERVICE OF SUMMONS: MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF ANTHONY JOHNSON

Tentative Ruling: Off calendar.

Defendant has not filed proof of service of the moving papers upon counsel for Plaintiff.